

# CLIMATE CHANGE

International Law & Negotiations

**Glen Wright**

REN21 Secretariat



# UNFCCC

## UNITED NATIONS FRAMEWORK CONVENTION ON CLIMATE CHANGE

### ■ **Global Treaty (197 parties)**

- Address climate change through cooperation & negotiations
- Principles: common but differentiated responsibilities (CBDR) & precautionary principle

### ■ **Mandate**

- Mitigation & Adaptation
- Reporting & Transparency: Parties report on emissions & progress
- Finance: Green Climate Fund

### ■ **Framework**

- Platform for countries to negotiate & make commitments.
- Annual COP Meetings are the main space for climate discussions.
- Underpins legally binding agreements, e.g. Kyoto, Paris



United Nations Framework  
Convention on Climate Change

# COP

## CONFERENCE OF THE PARTIES

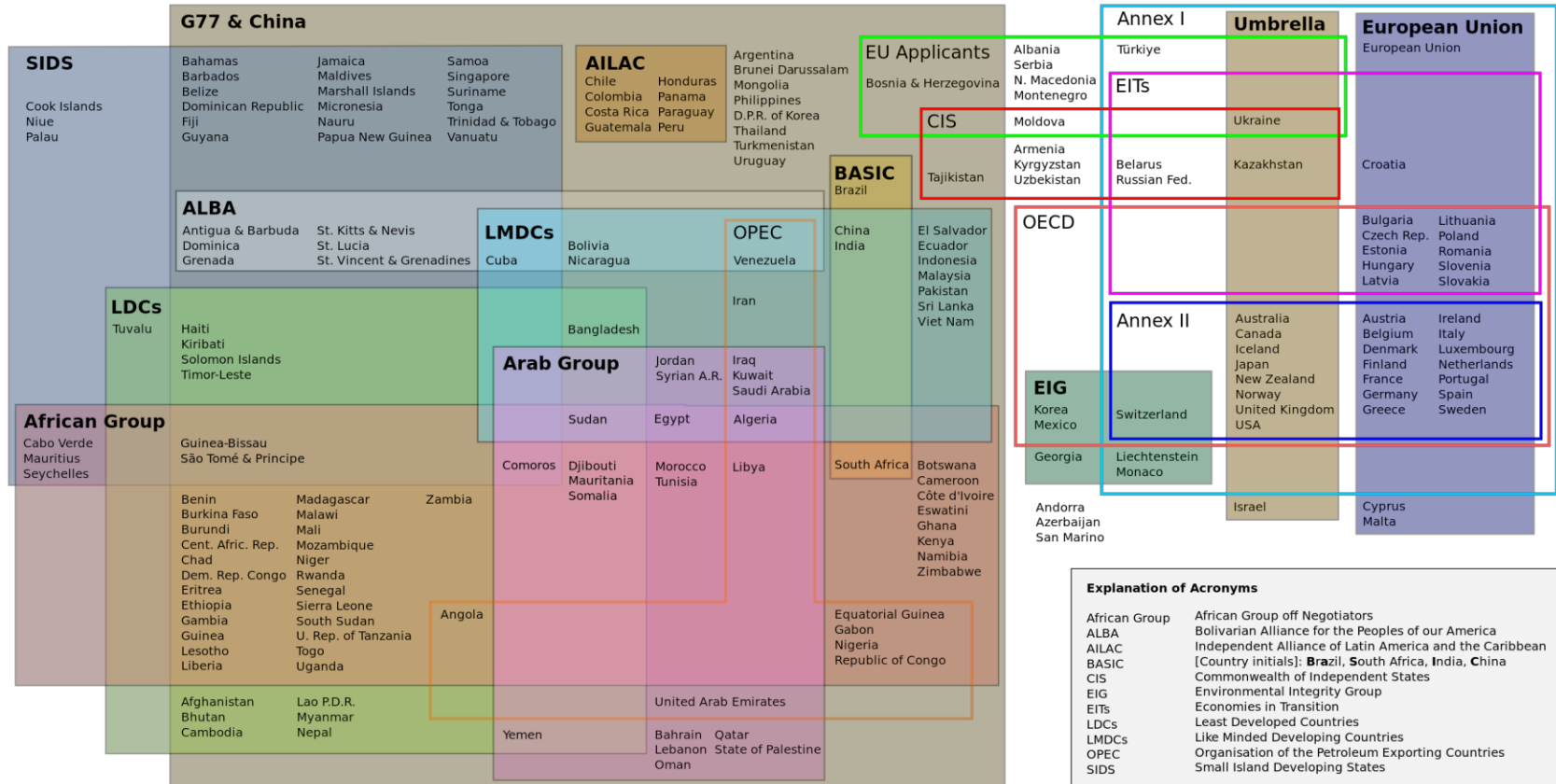
### ■ Decision-Making

- Highest decision-making body
- Shape global climate policy, sets targets, defines rules for action
- Adoption of significant agreements

### ■ Stakeholder Engagement

- Including world leaders, NGOs, businesses, local governments...





## KYOTO PROTOCOL (1997)

FIRST BINDING TREATY TO ADDRESS CLIMATE CHANGE

- **Emission reduction targets for developed countries**
- **Carbon Trading**
  - Clean Development Mechanism
  - Joint Implementation
- **Challenges**
  - Non-ratification by major players (e.g. US)
  - Criticism of effectiveness in achieving global emission reductions
  - Practicalities



# COP15

HOPENHAGEN, DECEMBER 2009

## ■ High Expectations

- Seeking international climate agreement to succeed Kyoto
- Highlighted complexities & need for consensus-building

## ■ Copenhagen Accord

- Political agreement
- Voluntary emission reduction commitments
- Climate finance provisions
- Increased focus on adaptation



## COP21 (PARIS, NOVEMBER-DECEMBER 2015)



### New target set

And new modalities  
for voluntary  
emissions reduction  
commitments



**Aimed to reach a  
universal & legally  
binding agreement**

Over 190 countries  
participated in the COP



# PARIS AGREEMENT

## LANDMARK INTERNATIONAL TREATY ON CLIMATE CHANGE

### ■ Binding Goal

- Limit global warming to well below 2°C
- With efforts to limit it to 1.5°C

### ■ Modalities

- Nationally Determined Contributions (NDCs)
- Long-term Strategies (LTS)
- Financial Commitments
- Global Stocktake





# NATIONALLY DETERMINED CONTRIBUTIONS

## INDIVIDUAL CLIMATE ACTION PLANS TOWARD THE 1.5°C GOAL

### ■ Contents

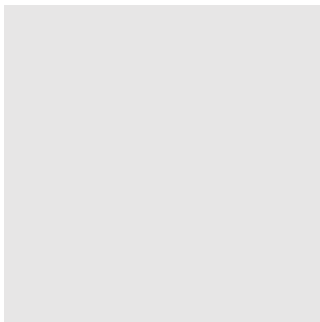
- Specific emission reduction targets
- Often outline adaptation strategies
- Cross-sectoral: energy, transportation, agriculture, forestry...
- Alignment with SDGs

### ■ Ratcheting Up Ambition

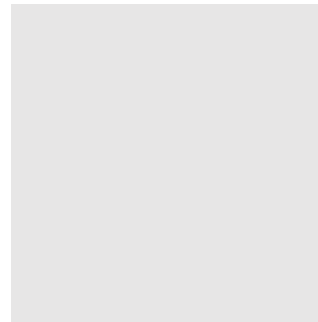
- More ambitious targets over time
- Periodic reviews: assess progress & adjust commitments
- Peer Pressure & Global Expectations
- Global Stocktake



## COP28 (UAE, HAPPENING NOW!)



**Agenda**  
Global Stocktake  
Finance  
Renewables



# COP28

## WHAT'S ON THE TABLE?

### ■ First Global Stocktake

- Synthesis report (September): 4°C -> ~2.6°C

### ■ Finance

- Taxation, e.g. international taxes on aviation etc.
- \$100bn/year -> \$1tn/year (New Collective Quantified Goal)
- \$12.7bn to the GCF
- Loss & Damage fund: day 1 landmark decision - \$650m to open

### ■ Food Systems

- Emirates Declaration – 134 countries will include food in NDCs

### ■ Adaptation

- Supposed to be a key outcome, but pledges & interest stalling

### ■ Renewables!



# COP28 Climate Summit | Global Stocktake draft calls for phasing out fossil fuels

Negotiators say that COP 28's location in the UAE, a petro state, has influenced language in the document, whose draft text includes a clause committing to "an orderly and just phase out of fossil fuels"

December 05, 2023 11:50 pm | Updated 11:50 pm IST - DUBAI

JOCOB KOSHY

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[READ LATER](#)

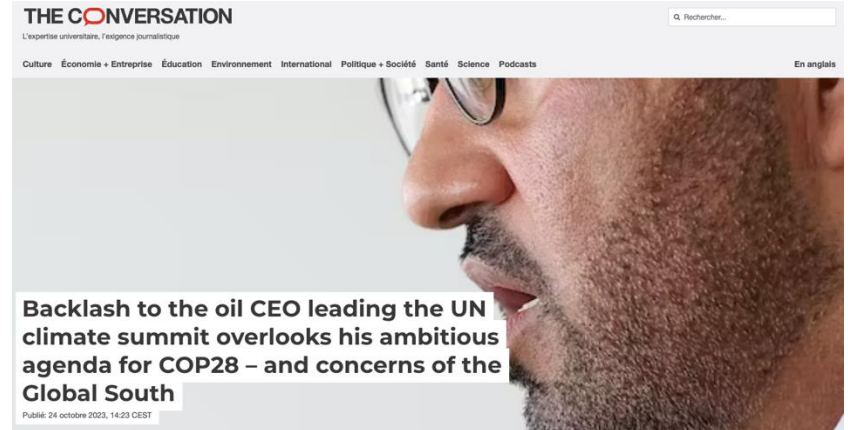


Activists, including Vanessa Nakate, of Uganda, right, protest against fossil fuels at the COP28 U.N. Climate Summit in Dubai on December 5, 2023. | Photo Credit: AP

# Cop28 president says there is 'no science' behind demands for phase-out of fossil fuels

**Exclusive: UAE's Sultan Al Jaber says phase-out of coal, oil and gas would take world 'back into caves'**

● [Cop28 live - latest updates](#)



# Oil, gas and coal interests swarm global climate summit in Dubai

More than 2,400 people with ties to the fossil fuel industry are registered to attend COP28, according to a review of U.N. data by an advocacy coalition

More than 2,400 people with ties to companies that produce or consume oil, natural gas, and coal — or from trade groups that advocate for those industries — are registered to attend COP28 in Dubai, according to the Kick Big Polluters Out coalition, which reviewed public registrations. That outnumbered nearly all the national and civil society delegations on hand to negotiate at the world's biggest climate summit,



If you've ever wanted to glide around the increasingly superheated seas on a yacht but worry about feeling a tad guilty about it then rejoice - 'responsible' yachting has come to [COP28](#).

Sunreef Yachts, a Polish yacht maker, has just held an event under the scorching [Dubai](#) sun extolling their range of solar-powered yachts. The company's representatives acknowledged the rather un-green image of super yachts, admitting that the 300 biggest boats in the world cause emissions equivalent to that of 10 million people.



☐ Sunreef Yachts, a Polish yacht maker, has just held an event under the scorching Dubai sun extolling their range of solar-powered yachts. Photograph: Oliver Milman/The Guardian

"We have to realise at first that yacht builders have a bad reputation in general in the area of all things sustainable," said Artur Poloczanski, PR director of Sunreef.

The emissions from yachts are "scary", Poloczanski admitted, but added "it's fair to say the yachting environment is very diverse. We are here to discuss the alternatives."

A range of different yachts provided by Sunreef include a solar 'skin' that can generate power, stored by batteries. Some can run on hydrogen fuel cells, too. But the company does also offer extremely large vessels, complete with private spas, gyms, outdoor cinemas and space for jet skis, powered by tanks [holding](#) upto 5,200 gallons of fuel.



REUTERS

## COP28 kicks off with climate disaster fund victory

And several did, kicking off a series of small pledges that countries hoped would build throughout the conference to a substantial sum, including \$100 million from the COP28 host United Arab Emirates, at least \$51 million from Britain, \$17.5 million from the United States, and \$10 million from Japan.

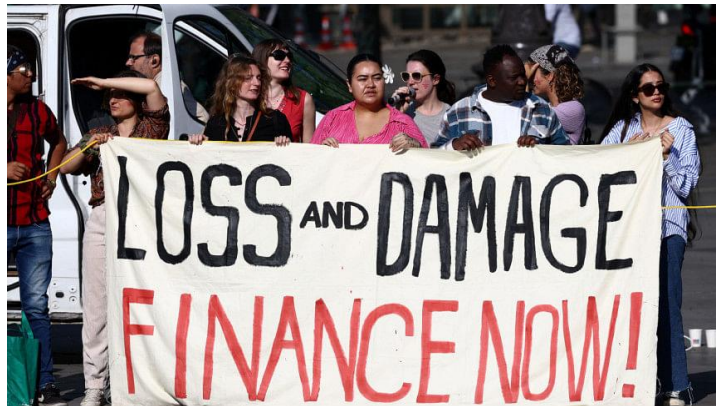
Later, the European Union pledged \$245.39 million, which included \$100 million pledged by Germany.

The early breakthrough on the damage fund, which poorer nations had demanded for years, could help grease the wheels for other compromises to be made during the two-week summit.

## COP28 'loss and damage' fund could threaten adaptation cash

By [REUTERS](#)

**PUBLISHED:** 19:05 GMT, 5 December 2023 | **UPDATED:** 19:05 GMT, 5 December 2023

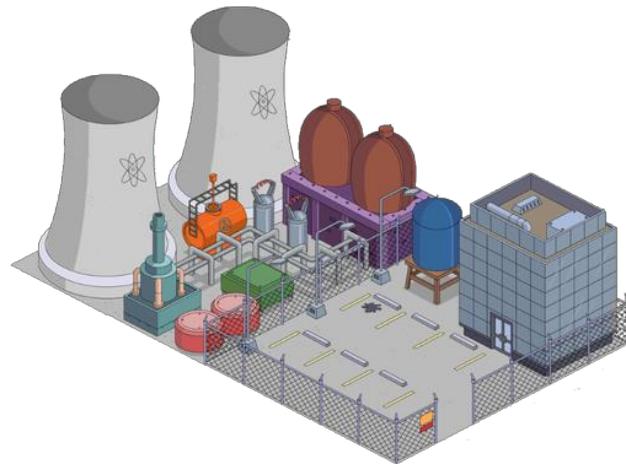




## At COP28, Countries Launch Declaration to Triple Nuclear Energy Capacity by 2050, Recognizing the Key Role of Nuclear Energy in Reaching Net Zero

DECEMBER 1, 2023

**DUBAI, UNITED ARAB EMIRATES** — During the World Climate Action Summit of the 28<sup>th</sup> Conference of the Parties to the U.N. Framework Convention on Climate Change today, more than 20 countries from four continents launched the Declaration to Triple Nuclear Energy. The Declaration recognizes the key role of nuclear energy in achieving global net-zero greenhouse gas emissions by 2050 and keeping the 1.5-degree goal within reach. Core elements of the declaration include working together to advance a goal of tripling nuclear energy capacity globally by 2050 and inviting shareholders of international financial institutions to encourage the inclusion of nuclear energy in energy lending policies. Endorsing countries include the **United States, Bulgaria, Canada, Czech Republic, Finland, France, Ghana, Hungary, Japan, Republic of Korea, Moldova, Mongolia, Morocco, Netherlands, Poland, Romania, Slovakia, Slovenia, Sweden, Ukraine, United Arab Emirates, and United Kingdom**. The full text of the Declaration is below.



# Global Power Utilities Declare Joint Action Plan to Drive Energy Transition at COP28

25 leading utility companies from across the globe join forces with IRENA and the UN Climate Change High-Level Champions to launch Utilities for Net Zero Alliance



# COP28: More than 110 nations commit to tripling renewable energy capacity by 2030

More than 110 countries committed Saturday to triple renewable energy capacity worldwide by 2030 and double the annual rate of energy efficiency improvements. The deal came as world leaders gathered for a third day of the COP28 summit in Dubai.

Issued on: 02/12/2023 - 08:32   Modified: 02/12/2023 - 18:29   ⌚ 5 min



An image from the COP 28 UN climate summit in Dubai, United Arab Emirates, on December 2, 2023. © Peter Dejong, AP

**We declare our intent to work collaboratively and expeditiously to pursue the following objectives:**

*Commit* to work together to triple the world's installed renewable energy generation capacity to at least 11,000 GW by 2030, taking into consideration different starting points and national circumstances.

*Commit* to work together in order to collectively double the global average annual rate of energy efficiency improvements from around 2% to over 4% every year until 2030.

*Commit* to put the principle of energy efficiency as the "first fuel" at the core of policymaking, planning, and major investment decisions.

*Recognize* the need to strengthen international collaboration on renewables and energy efficiency, for which the following cooperative actions are key:

- Collaborate on resilient value chains and technology development including through voluntary transfer under mutually agreed terms and conditions;
- Expand financial support for scaling renewable energy and energy efficiency programs in emerging markets and developing economies, including multi-source investment from private sector, multilateral development banks, and philanthropy;
- Collaborate on accessible financing mechanisms to reduce the cost of capital in emerging markets and developing economies.
- Enhance technical support and capacity building for renewables and energy efficiency developing economies;
- Accelerate cross-border grid interconnections.

*Recognize* that, to support the achievement of these targets, the following enablers are key:

- Accelerate permitting of renewable projects and related infrastructure;
- Develop and expand grid connections, and improve energy system integration;
- Provide clarity on market design and incentive schemes and strengthen market conditions and investment frameworks to facilitate investments in renewables and energy efficiency.
- Promote energy efficiency, electrification and energy demand management in all relevant sectors;
- Raise public awareness and encourage behavioral change;
- Encourage increased and meaningful, multiple-source private and public investments, particularly for developing countries;
- Enhance and scale new technological solutions, including through support in research, development and innovation.

## When negotiating COP28 wording...

Energy  
efficiency!

Not just an  
empty  
slogan

Wording on  
“other  
solutions”

Financing

Fossil fuel  
phaseout

# When negotiating COP28 wording...

Energy efficiency!

What does it mean for me?

Not just an empty slogan

Review process

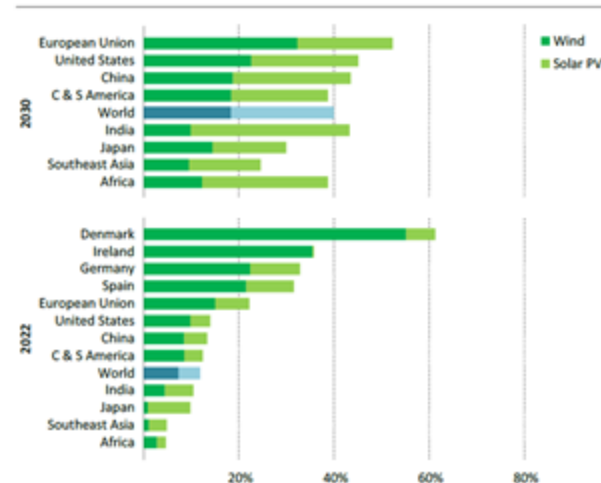
Wording on “other solutions”

Financing

Fossil fuel phaseout

- Tripling renewables. BUT... not tripling.
- World = 40% solar + wind in 2030
- Expect no wording... (like Paris!)

**Figure 3.5** > Share of total electricity generation from wind and solar PV by selected country/region in 2022 and in the NZE Scenario in 2030



IEA, CC BY 4.0

Integration of solar PV and wind is critical to the NZE Scenario, as their share in total generation in most regions reaches levels in 2030 seen only in a few countries today



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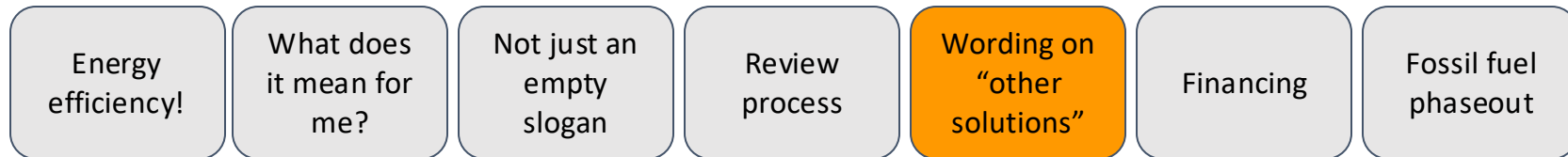
Fossil fuel phaseout

We invite all countries to join COP28's pledge endorsing the tripling of global renewables capacity (reaching 11 TW by 2030) and doubling of the annual average global rate of energy efficiency improvements between now and 2030 (reaching 4%), and **to come to COP with tangible commitments to realize this goal**. Based on feedback from consultations, the pledge details essential national actions to collectively achieve these global goals (while recognizing different national circumstances). They include raising national targets, addressing impediments such as limiting subsidies for fossil fuels, speeding up permitting processes, scaling grid investments, accelerating storage technologies and ensuring access to finance. We call on leaders to outline country-specific steps at COP28's WCAS. Announcements could include revised domestic targets and/or revised NDCs with updated renewables or energy efficiency targets for 2030, backed by specific plans; funding packages; accelerated delivery timelines and/or technical assistance packages; policies and projects or support to international or bilateral programs, such as the UAE's recent \$4.5 billion announcement in Nairobi to scale up clean energy in Africa. Achieving these two targets as well as ending new approvals of unabated coal plants will enable the phase down of demand for fossil fuels and is critical to keeping 1.5 °C within reach.



17 OCTOBER 2023

# When negotiating COP28 wording...



## G20 New Delhi Leaders' Declaration

New Delhi, India, 9-10 September 2023

Will pursue and encourage efforts to triple renewable energy capacity globally through existing targets and policies, as well as demonstrate similar ambition with respect to other zero and low-emission technologies, including abatement and removal technologies, in line with national circumstances by 2030. We also note the 'Voluntary Action Plan for Promoting Renewable Energy to Accelerate Universal Energy Access'.

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## Fixing climate finance

We know that the current climate finance system is not fit for purpose. We are facing an investment gap in the USD trillions in developing countries, while those that contributed least to the problem suffer the greatest impacts and receive the least finance. As I have emphasized, climate finance must be affordable, available and accessible to developing countries to enable a radical scale up of climate action.

**We invite governments to come to COP28 with innovative solutions, policy incentives and instruments to unleash the potential of the private sector.** In addition to scaling public and concessional finance, an investment-led approach is needed to spur the transformation required to achieve the Paris commitments. This starts from the real economy, especially to scale the deployment of low-carbon energy systems. At the Africa Climate Summit, I put forward an ambitious plan to accelerate the clean energy transition across Africa, backed by a \$4.5 billion commitment from the UAE and partners and a call to African leaders to create the enabling environment for finance to flow. **We call on international partners to mobilize around this, or similar country-owned, needs-driven platforms, and on developing countries to enable the necessary reforms to unlock investment at scale.** Better-functioning voluntary carbon markets can also channel additional financing to developing countries and support local economies. We call on all standard setters to align on high integrity standards by COP28 and for investors to come with high-integrity transactions. We also ask countries to strengthen all sources of climate finance, including through domestic resource mobilization.

**Finally, we need bigger and better international finance institutions (IFIs) who are fit-for-purpose to address both climate and development.** I have called on IFIs to scale up concessional finance for adaptation and support for a just transition of energy systems. I congratulate MDBs on meeting their 2025 climate finance targets early and urge them to come to COP28 with revised, ambitious targets. I have also called on IFIs to deploy innovative instruments to catalyze private finance and reduce the cost of capital in developing countries through currency risk hedging and other risk mitigation approaches.

**We urge MDBs to work better together as a system through country platform approaches,** and work on policy across sectors to create an enabling environment for climate investments at country level. Climate finance must support countries' development goals without worsening debt distress, including through mechanisms on debt relief for climate. We saw some progress on the MBD reform agenda at last week's World Bank-IMF annual meetings, including the new mission for the World Bank to create a world free of poverty on a livable planet, as well as the report on nearly \$100 billion being delivered in climate finance by MDBs in 2022 and a joint statement by MDB Presidents committing to work together for greater action ahead. Now we must accelerate this progress agenda at last week's World Bank-IMF annual meetings, including the new mission for the World Bank to create a world free of poverty on a livable planet, as well as the report on nearly \$100 billion being delivered in climate finance by MDBs in 2022 and a joint statement by MDB Presidents committing to work together for greater action ahead. Now we must accelerate this progress.

I will convene Presidents of MDBs in early November to engage on these issues and discuss key priorities for COP28. We welcome the progress on G20 commitment to re-channel \$100 billion of unused Special Drawing Rights (SDRs). We call on Parties to now increase their SDR pledges and speedily translate existing SDR pledges into commitments through IMF and MDBs.

As I laid out before, COP28 should be a milestone to help **build the foundation for the finance system of the future.** Since then, momentum has grown further on reform of the international architecture, with clear signals from the G20, the Paris Summit, the UNSG's Climate Ambition Summit, and the African Climate Summit. The Nairobi Declaration in particular demonstrated Africa's leadership and made clear the need for a Global Charter on climate finance. COP28 will build on this progress, offering an inclusive platform to bring various initiatives into a clear, common vision. With the support of the Independent High Level Expert Group (IHLEG) on Climate Finance, **we will seek to provide an overarching structure and set of organizing principles for the international climate finance system moving forward.** The IHLEG will present a first draft at Pre-COP in October with further details. We urge all leaders to come to WCAS ready to demonstrate their priorities and actions in line with the above action agenda areas.

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**Commit to ambitious energy transition plans** with concrete milestones to 2030 and beyond, which will allow the renewables and storage industries to plan for efficient supply chain development. These plans should be reflected in Nationally Determined Contributions and enshrined in national policy frameworks, including ambitious technology targets with a frequent, well planned schedule of sizable volumes of capacity for procurement.



**Urgently streamline permitting schemes** for grid-scale renewable energy projects as well as long-duration energy storage and hydrogen projects. Policymakers can consider implementing mandated lead times for the administrative, licensing and environmental permitting stages of project development, as well as a "one-stop shop" model for authorities.



**Urgently invest in grid action plans** which rapidly build out electricity grids and heat systems for integration of large volumes of renewables and long-duration energy storage solutions. As grid infrastructure often requires a longer lead time than renewable projects, the lack of available grid connections and transmission poses a significant bottleneck to the scale-up of renewable energy.



**Foster multilateral renewable energy partnerships and trade agreements** in support of the energy transition, to improve collaboration on shared challenges, enhance North-South technology transfer, expand South-South cooperation and solutions, and contribute to a just and equitable transition in developing economies.



**Maximise the potential for a nature-positive energy transition** by including renewables deployment plans and targets as part of wider environmental and biodiversity strategies on land and in the sea.



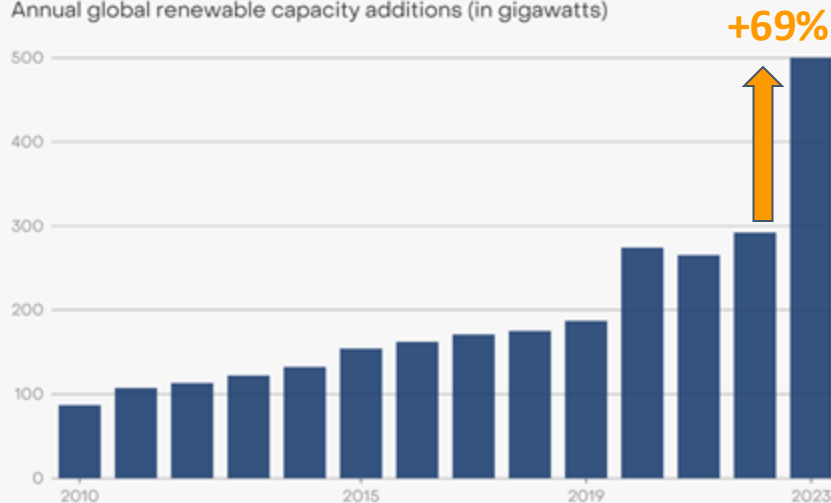
**Strengthen commitment to Sustainable Development Goal 7** to achieve a just and orderly energy transition that leaves no one behind, with continued action towards providing affordable, reliable, sustainable and modern energy for all by 2030.



**Policymakers should also consider other key enablers:** Implementation of robust sustainability and technology standards/certification, creation of a level playing field in energy subsidies, incentivising flexibility and dispatchability in electricity markets, recognising indigenous and land rights when planning renewable deployment, facilitating corporate procurement of renewable energy and implementation of the global rulebook on robust carbon pricing.

## Renewable additions reach a record-high in 2023

Annual global renewable capacity additions (in gigawatts)

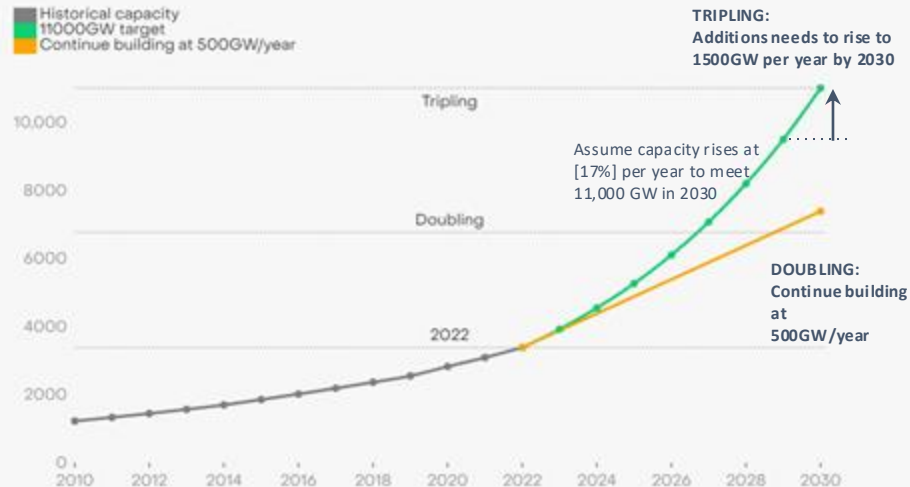


Source: IEA Renewable Energy Market Update 2023

EMBER

## If 2023 additions stay the same, renewables doubles by 2030

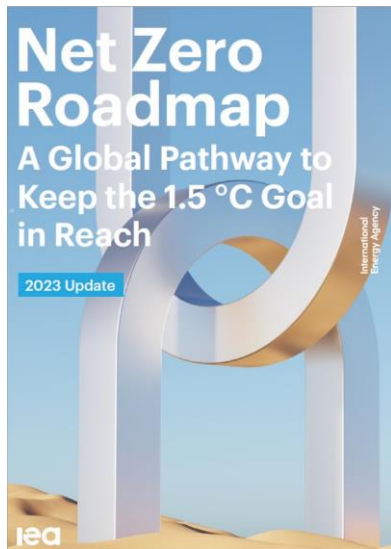
■ Historical capacity  
■ 11000GW target  
■ Continue building at 500GW/year



Source: Ember

EMBER



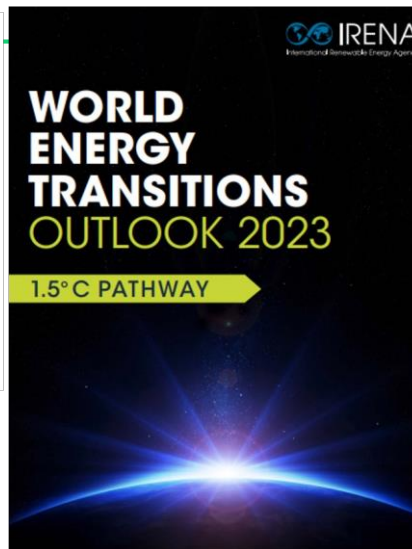


#### Renewables and efficiency are key to drive fossil fuel demand down

Tripling global installed renewables capacity to 11 000 gigawatts by 2030 provides the largest emissions reductions to 2030 in the NZE Scenario. Renewable electricity sources, in particular solar PV and wind, are widely available, well understood, and often rapidly deployable and cost effective. Current policy settings already put advanced economies and China on track to achieve 85% of their contribution to this global goal, but stronger policies and international support are required in other emerging market and developing economies. For all countries, speeding up permitting, extending and modernising electricity grids, addressing supply chain bottlenecks, and securely integrating variable renewables are critical.

Doubling the annual rate of energy intensity improvement by 2030 in the NZE Scenario saves the energy equivalent of all oil consumption in road transport today, reduces emissions, boosts energy security and improves affordability. Although the mix of priorities will differ by country, at the global level energy intensity improvements stem from three equally important actions: improving the technical efficiency of equipment such as electric motors and air conditioners; switching to more efficient fuels, in particular electricity, and clean cooking solutions in low-income countries; and using energy and materials more efficiently.

These two actions reduce fossil fuel demand, enabling continued adherence to a key milestone of our 2021 report: an immediate end to new approvals of unabated coal plants.



Press Release

Annual Renewable Power Must Triple by 2030

@IRENA's World Energy Transitions Outlook #WETO23 calls for raised global ambition in deploying renewables & provides critical input on priority actions following #COP28UAE & beyond.

Read [bit.ly/42VJ2pQ](https://bit.ly/42VJ2pQ)



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COP28, 17 OCTOBER 2023 CCS / Hydrogen



# DOUBLE DOWN, TRIPLE UP.

THE WORLD NEEDS #3xRENEWABLES



See the open letter  
and supporters of  
the #3xRenewables  
campaign here

CAN WE COUNT ON YOU?

#3xRenewables



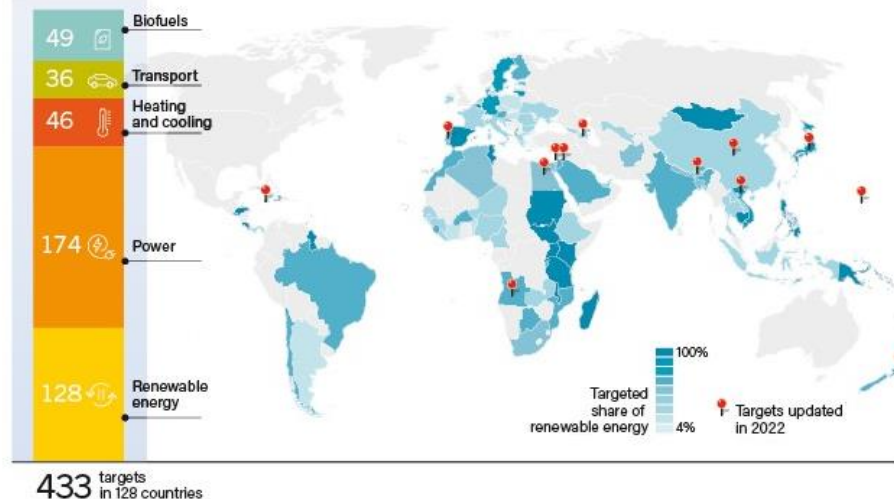
Global  
Renewables  
Alliance

# RENEWABLE ENERGY TARGETS

## NEW ECONOMY-WIDE AND TECHNOLOGY-SPECIFIC TARGETS

 Countries with Economy-wide Renewable Energy Targets, by Sector and Targeted Share, 2022

Sectoral split up of targets



Over **65%** of countries have an economy-wide renewable energy target. (**13** countries updated in 2022).

Only **31 countries** have a 100% renewable energy target.

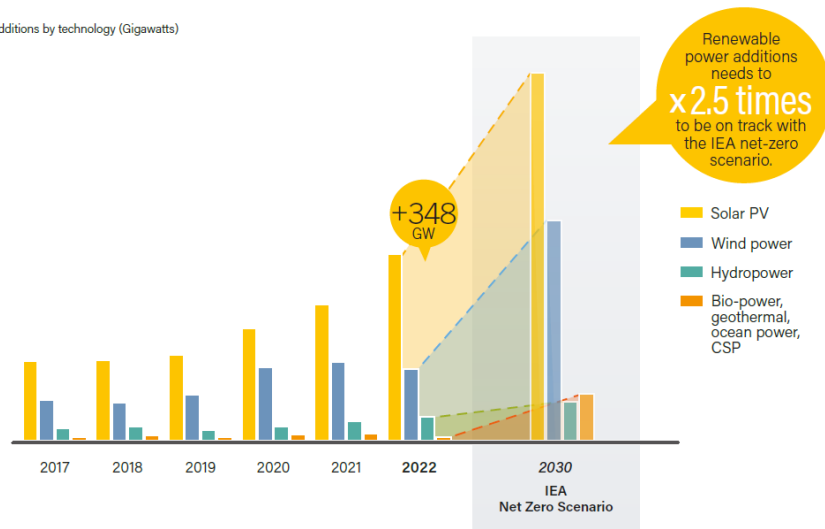
# RENEWABLE POWER CAPACITY MUST RAMP UP

ANNUAL ADDITIONS STILL NEED TO RAMP UP TO MEET CLIMATE SCENARIOS



**Renewable Power Capacity Annual Additions by Technology, 2017-2022, and Increases Required by 2030 to Achieve the IEA's Net Zero Scenario**

Additions by technology (Gigawatts)



**Total installed capacity:  
3481 GW**

**Needed increase in  
annual capacity**

**Solar PV : x2**

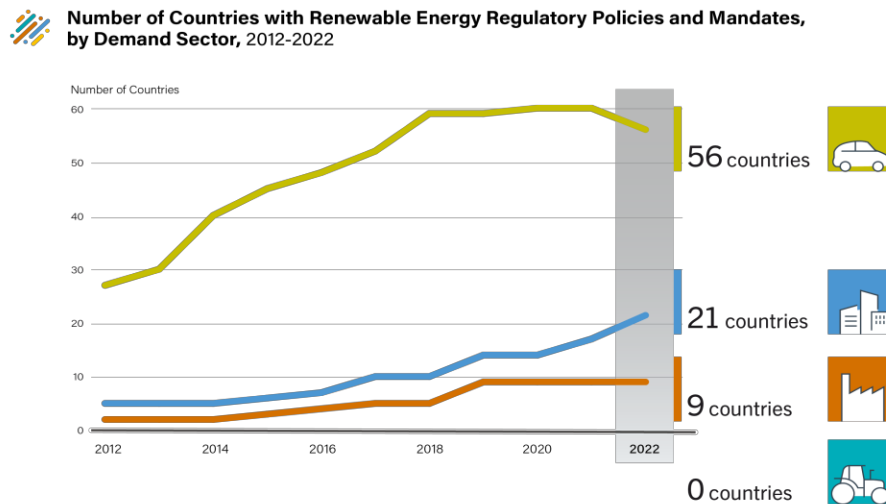
**Wind : x3.7**

**Hydropower: x2.3**

**Other technologies: x9.7**

## MIXED SIGNALS

MORE SECTOR SPECIFIC POLICY DEVELOPEMENT REQUIRED



Fossil fuel subsidies worldwide soared in 2022, rising above **USD 1 trillion** for the first time – an **85% increase** compared to 2021. Exploration of new oil and gas and new infrastructure.



[www.ren21.net](http://www.ren21.net)

